

Present:

Mr. Justice Md. Shohrowardi

Criminal Revision No. 638 of 2007

Moqbul Hossain alias Moqbul

...Convict-appellant-petitioner

-Versus-

The State

...Opposite party

Mr. Md. Asaduzzaman, Advocate

...For the convict-appellant-petitioner

Mr. S.M. Golam Mostofa Tara, D.A.G with

Mr. A. Monnan (Manna), A.A.G

...For the State

Heard on 17.01.2024 and 24.01.2024

Judgment delivered on 29.01.2024

This Rule under Section 439 read with Section 435 of the Code of Criminal Procedure, 1898 was issued calling upon the opposite party to show cause as to why the judgment and order dated 24.09.2006 passed by Additional Sessions Judge, Second Court, Dinajpur in Criminal Appeal No. 39 of 1998 affirming the judgment and order of conviction and sentence dated 03.06.1998 passed by Assistant Sessions Judge, Second Court, Dinajpur in Sessions Case No. 62 of 1993 convicting the petitioner under Section 412 of the Penal Code, 1860 and sentencing him thereunder to suffer rigorous imprisonment for 3(three) years and fine of Tk. 500, in default, to suffer rigorous imprisonment for 3(three) months more should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

The prosecution case, in short, is that on 22.08.1990 at 1.00 am the informant Sree Santush Moitra after dinner was sleeping along with his daughter Jhunu in his west bhiti hut. At that time, his wife was residing in the house of her father. Due to the hot weather, his younger brother Paritosh Moitra was sleeping on the veranda of the north bhiti hut and his wife Putul Rani Moitra pushing the door was sleeping in the bhiti hut but the door was not closed. The father of the informant was

sleeping in the house. Shefali Rani Moitra was sleeping in the south facing bhiti hut. When P.W. 1 went to sleep, both the east and west door of the main gate was closed. At 11.15 am, he heard the sound of talking and focused the torch but he did not find anyone. His younger brother Paritosh raised hue and cry. At that time, 2/3 dacoits entered the house and by opening the door 4/5 dacoits entered the house and caught his younger brother and started beating him. They also threatened with dear consequence, if he resisted. By breaking the door of the informant one dacoit entered his house and pointing a dagger ordered him to give the gold and money. At that time, the accused looted away the 17" black and white television kept on the table and the chassis number of the said television was 3607 and the license number was 66, valued at Tk. 6500, three-band National Panasonic Radio valued at Tk. 900, one three-battery big torch valued at Tk. 150, a plate made of silver kept in a 22" black trunk, four jugs made of silver valued at Tk. 1080, a plate made of silver valued at Tk. 100, two glasses made of silver a briefcase along with different kinds of shares, blouse, petticoat, white dhuti valued at Tk. 2000, ornament of ear valued at Tk. 3000 and one mosquito net valued at Tk. 250. 15/16 dacoits aged about 20/35 years committed dacoity and they were wearing lungi and black genji. They were talking in the local language. They were armed with lathi, dagger, bomb and torch. They blast four bombs at the time of committing dacoity. After committing dacoity, the dacoits run away to the west of their house. At the time of dacoity, one dacoit said 'Wahed come quickly'. Hearing hue and cry, Doctor Din Bandhu Roy and Gopen Bandhu Roy along with others came to the place of occurrence. While the informant chased the dacoits, they threw the bombs at the informant. The dacoits looted away the goods valued at Tk. 15,200.

Police took up the investigation of the case. During the investigation, the Investigating Officer visited the place of occurrence, prepared the sketch map and index, recorded the statement of witnesses and after completing the investigation S.I Md. Nurul Islam submitted

charge sheet on 19.05.1991 against the accused persons including accused Moqbul Hossain alias Moqbul under Sections 395/397 of the Penal Code.

After that, the case was sent to the Sessions Judge, Dinajpur and the case was registered as Sessions Case No. 62 of 1993. During the trial Sessions Judge, Dinajpur framed charge on 29.11.1993 against the accused persons under Sections 395 and 397 of the Penal Code, 1860 which was read over and explained in Bengali to the accused persons present in Court who pleaded not guilty to the charge and claimed to be tried following law. The prosecution examined 12(twelve) witnesses to prove the charge against the accused persons. After the framing charge, the case was transferred to the Assistant Sessions Judge, Court No. 2, Dinajpur on 24.09.1996. After examination of the prosecution witnesses, the accused persons were examined under Section 342 of the Code of Criminal Procedure, 1898. The accused persons again pleaded not guilty and declined to adduce any D.W. During examination under Section 342 of the Code of Criminal Procedure, 1898, co-accused Babul Islam stated that by beating police recorded his confession and he retracted the confession on 01.04.1991

After concluding the trial, the trial Court by judgment and order dated 03.06.1998 convicted the accused under Section 412 of the Penal Code, 1860 and sentenced him to suffer rigorous imprisonment for 3(three) years and a fine of Tk. 500 in default to suffer rigorous imprisonment for 3(three) months more against which the accused filed Criminal Appeal No. 39 of 1998 before the Sessions Judge, Dinajpur. After that, the Sessions Judge, Dinajpur was pleased to send the appeal to the Additional Sessions Judge, Court No. 2, Dinajpur for hearing and after hearing the parties, the appellate Court below by impugned judgment and order dismissed the appeal affirming the judgment and order passed by the trial Court against which the convict-petitioner obtained the instant Rule.

P.W. 1 Manotosh Moitra is the informant of the case. He stated that on 22.08.1990 at about 11.15 he was sleeping in his house. After sometimes, hearing the sound of the unknown person, he wake up and focus the torch. At that time, 6/7 persons by climbing the wall entered into the house and broke the door to enter his bhiti hut. The dacoits pointed daggers at him and looted away 17" Panasonic Television, one National Panasonic Radio, and one Three Battery Torch from his house. The dacoits entered into the house of his brother Paritosh Moitra and looted away the clothes and the plates made of silver. While the informant raised a hue and cry, the accused persons threw a bomb. At the time of fleeing away, the informant raised hue and cry. At that time, the accused persons had thrown a bomb. Consequently, Dinbandhu Roy was injured. On the next day, he went to Thana and lodged the FIR. The officer of the police wrote the verbal FIR and read it over to him. He signed the FIR. He proved the FIR as exhibit 1 and his signature as exhibit 1/1. During cross-examination, he stated that he could not recognize the dacoits and the looted goods were not handed over to him.

P.W. 2 Bhabadissor Moitra stated that the occurrence took place about three years back one day in March at night. On that day, he was sleeping in his house. Due to urination, he went out of his bhiti hut and saw that the door was closed from the outside by chain. The locals came to his house and opened the door. The dacoits looted away TV, radio, clothes, utensils etc from their house. After 2/3 days, a police officer brought a radio and a torch to show them and subsequently took those goods.

P.W. 3 Shefali Moitra was tendered and declined by the defence.

P.W. 4 Paritosh Moitra was tendered and declined by the defence.

P.W. 5 Putul Rani Moitra stated that the occurrence took place three years back at 12 at night. On that day, dacoity was committed in

their house. Entering into their house, the dacoits looted the cloths, a bag made of leather and a box. The dacoits also looted away TV, radio, and torchlight from the house of the brother of his husband. The police officer recovered the radio looted away from their house. During cross-examination, she stated that the looted radio and other goods were not handed over to them.

P.W. 6 Bhuban Chandra Roy was tendered and declined by the defence.

P.W. 7 Md. Ismail Chowdhury was tendered and declined by the defence.

P.W. 8 S.I. Md. Hamidur Rahman stated that on 22.08.1990, he was posted at Kotwali Thana, Dinajpur as S.I. On 23.08.1990 at 12.35, the informant Manotosh Moitra verbally lodged the FIR and he recorded the FIR. He proved the FIR as exhibit 1 and his signature as exhibit 1/2. During cross-examination, he stated that none is named in the FIR.

P.W. 9 Abdus Sattar was tendered by the prosecution and declined by the defence.

P.W. 10 Fazlul Haque was tendered by the prosecution and declined by the defence.

P.W. 11 Shamim Azad Chowdhury stated that on 23.08.1990, he was posted at Kotwali Thana, Dinajpur. On that day at 12.35 pm, the informant orally lodged the FIR and S.I. Hafizur Rahman registered the FIR. After that, he was appointed as Investigating Officer. During the investigation, he visited the place of occurrence, prepared the sketch map and index, and recorded the statement of witnesses under Section 161 of the Code of Criminal Procedure, 1898. He proved the sketch map as exhibit 2 and his signature as exhibit 2/Ka. He proved the index as exhibit 3 and his signature as exhibit 3/Ka. He seized broken pieces of glass, parts of brick, a broken door and a white Punjabi and prepared the seizure list. He proved the seizure list as exhibit 4 and his signature as exhibit 4/Ka. During investigation on 30.08.1990 recovered National

Panasonic 3 Band Radio made in Japan and one three battery eveready torch from the house of accused Moqbul in the presence of witnesses 1. Abdus Sattar and 2. Fazlul Haque. The radio was kept in a box and the torch was kept under the pillow of the accused used for sleeping and in the presence of the said witnesses recovered those and prepared the seizure list. He proved the seizure list as exhibit 5 and his signature as exhibit 5/Ka. He proved the radio as exhibit I and the torch as exhibit II. During the investigation, he applied to the Upazilla Magistrate on 28.12.1990 to arrange the identification of the recovered torch and radio. During the investigation accused Aatur Rahman and Moksed Ali stated to him that they committed dacoity. He filed an application on 10.10.1990 to the Magistrate and sent the accused through police escort to the Court. During the investigation, he was transferred and handed over the records to S.I. Nurul Amin. On behalf of accused Moksed, the defence declined to cross-examine him. During cross-examination on behalf of accused Aatur, he stated that Aatur is not named in the FIR and no goods were recovered from him. Finally, the accused Aatur refused to make any statement to the Magistrate. During cross-examination on behalf of accused Maqbul, he stated that accused Moqbul is not named in the FIR and he also did not make any confession but the looted goods were recovered from his house. The radio and torch are old and used. No number of radio is given in the FIR. He denied the suggestion that the recovered radio and torch belonged to the accused.

P.W. 12 Md. Nurul Islam stated that on 14.02.1991, he was posted at Kotwali Thana, Dinajpur. He was appointed as the Investigating Officer and arrested the accused Babul, Moqbul and they made confession regarding the occurrence. He did not record the statement of any witnesses. After investigation, he found the prima facie truth of the allegation against the accused persons and submitted charge sheet against them on 19.05.1991. During cross-examination, he stated that the previous I.O. recovered the goods.

Learned Advocate Mr. Md. Asaduzzaman appearing on behalf of the convict-petitioner Moqbul Hossain alias Moqbul submits that one Panasonic Radio and torch were allegedly recovered from the house of the accused but in the FIR, the informant did not mention the number of the radio and the torch. In the FIR, the informant mentioned the chassis number and license number of the black and white TV. looted away from his house. The recovered radio and torch were not identified by any of the witnesses who are the alleged owners of the said goods. He further submits that the witnesses of the seizure list were tendered by the prosecution and the prosecution failed to prove the charge against the convict-petitioner and the trial Court most illegally without proper assessment and evaluation of the evidence mechanically passed the impugned judgment and the appellate Court below without applying the judicial mind affirmed the judgment and order passed by the trial Court. Therefore, he prayed for making the Rule absolute.

Learned Deputy Attorney General Mr. S.M. Golam Mostofa Tara appearing on behalf of the State submits that the Panasonic Radio and torch were admittedly recovered from the house of the convict-petitioner and the Courts below rightly passed the impugned judgment convicting the accused under Section 412 of the Penal Code, 1860. He prayed for discharging the Rule.

I have considered the submission of the learned Advocate Mr. Md. Asaduzzaman who appeared on behalf of the convict-appellant-petitioner and the learned Deputy Attorney General Mr. S.M. Golam Mostofa Tara who appeared on behalf of the State, perused the impugned judgments and orders passed by the Courts below, evidence and the records.

On perusal of the records, it appears that none is named in the FIR. P.W. 1 stated that the looted goods were not handed over to him. P.W. 3 stated that after 2/3 days, the police officer brought one radio and a torch to show them and thereafter those were taken. P.W. 11

Investigating Officer Shamim Azad Chowdhury stated that a National Panasonic three brand Radio made in Japan was recovered from the house of accused Moqbul in the presence of witnesses Abdus Sattar and Fazlul Haque. Abdus Sattar and Fazlul Haque were tendered by the prosecution. None of the witnesses identified the recovered radio and torch allegedly looted from the house of P.W. 2. Out of 12 witnesses, P.Ws. 3, 4, 6, 7, 9 and 10 were tendered by the prosecution. P.Ws. 1, 2 and 5 stated nothing against the accused as regards recovery of the radio and torch from the house of the convict-petitioner. P.W. 8 is the Recording Officer. P.Ws. 11 and 12 are the Investigating Officers. It is found that co-accused Babul made the statement under Section 164 of the Code of Criminal Procedure, 1898 but the learned Magistrate who recorded the statement of co-accused Babul under Section 164 of the Code of Criminal Procedure, 1898 was not examined in the case. No TI parade was held in the case. No explanation was given by the prosecution as to why a large number of witnesses i.e. P.Ws. 3, 4, 6, 7, 9 and 10 were tendered by the prosecution. The Japanese radio and torch are not prohibited goods and are available in Bangladesh. Except the investigating officer, none of the P.Ws stated that radio (material exhibit I) and torch (material exhibit II) were looted away by the convict-petitioner. They also did not identify the material exhibits I and II.

In view of the above evidence, I am of the view that both the Courts below failed to apply their judicial mind and wrongly convicted the convict-petitioner based on no evidence.

Because of the above evidence, findings, observation and proposition, I am of the view that the prosecution failed to prove the charge against the accused beyond all reasonable doubt.

I find merit.

In the result, the Rule is made absolute.

The impugned judgments and order of conviction and sentence passed by the Courts below against accused Moqbul Hossain alias Moqbul are hereby set aside.

The accused Moqbul Hossain alias Moqbul is acquitted from the charge framed against him.

Send down the lower Court's records at once.